

## Chapter 3D: Capital Gains

### Illustration 01 [PYQ July 2021]

Mr. Patel is a proprietor of Star Stores since 20-05-2023. He has transferred his shop by way of slump sale for a total consideration of ₹ 40 Lakh & FMV of Assets transferred are 38 Lakhs. The professional fees & brokerage paid for this sale are ₹ 80,000. His Balance Sheet as on 31-03-2026 is as under:

| Liabilities     | ₹         | Assets       | ₹         |
|-----------------|-----------|--------------|-----------|
| Own Capital     | 10,50,000 | Building     | 5,00,000  |
| Bank Loan       | 5,00,000  | Furniture    | 5,00,000  |
| Trade Creditors | 2,50,000  | Debtors      | 2,00,000  |
| Unsecured Loan  | 2,00,000  | Other Assets | 8,00,000  |
| Total           | 20,00,000 | Total        | 20,00,000 |

Other Information:

1. No individual value of any asset is considered in the transfer deed.
2. Other assets include trademarks valuing ₹ 2,00,000 as on 01-04-2025 on which no depreciation has been provided.
3. Furniture of ₹1,50,000 purchased on 05-11-2025 on which no depreciation has been provided.
4. Unsecured loan includes ₹50,000 as advance received from his wife, which she has agreed to waive off.

Compute the capital gain for AY 2026-27.

### Solution

#### Computation of Capital Gains on Slump Sale of Shop

| Particulars                                                                                                                         |          | ₹         |
|-------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|
| Sale value                                                                                                                          |          | 40,00,000 |
| Less: Expenses on sale [professional fees & brokerage]                                                                              |          | 80,000    |
| Net sale consideration                                                                                                              |          | 39,20,000 |
| Less: Net worth (See Working Note below)                                                                                            |          | 10,42,500 |
| Short-term capital gain [Since shop is held for not more than 36 months immediately preceding the date of transfer]                 |          | 28,77,500 |
| Working Note:                                                                                                                       |          |           |
| Computation of net worth of shop                                                                                                    |          |           |
| Building                                                                                                                            |          | 5,00,000  |
| Furniture                                                                                                                           | 5,00,000 |           |
| Less: Deprecation on ₹1,50,000 @ 5%, being 50% of 10% since furniture is put to use for less than 180 days during the previous year | 7,500    | 4,92,500  |

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|                                                                                  |          |           |
|----------------------------------------------------------------------------------|----------|-----------|
| Debtors                                                                          |          | 2,00,000  |
| Other assets                                                                     | 8,00,000 |           |
| Less: Deprecation on ₹ 2,00,000, being intangible asset @ 25%                    | 50,000   | 7,50,000  |
| Total assets                                                                     |          | 19,42,500 |
| Less: Bank loan                                                                  | 5,00,000 |           |
| Trade creditors                                                                  | 2,50,000 |           |
| Unsecured loan ₹ 2,00,000 less ₹ 50,000, being the amount waived off by his wife | 1,50,000 | 9,00,000  |
| Net worth                                                                        |          | 10,42,500 |

**Illustration 02 [PYQ May 2024 & RTP May 2024]**

Mr. Surinder furnishes the following particulars for the previous year ending 31.03.2026. He had a Residential House, inherited from his father in December 2009, the Fair Market Value of which on 01.04.2001 is ₹ 15 lakhs. In the year 2013-2014, further construction and improvements costing of ₹ 10 lakhs. The House was originally purchased by his father on 01.03.2000 for ₹ 10 Lakhs. On 10.05.2025, the House was sold for ₹ 75 Lakhs. Expenditure in connection with transfer is ₹ 50,000. On 20.12.2025, he purchased a Residential House for ₹ 12 lakhs and he does not own any other house. Compute the taxable Capital Gain for the assessment year 2026-27.

**Solution****Computation of Taxable Capital Gains for A.Y.2026-27**

| Particulars                                                                                                                                            | ₹         |
|--------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| Full Value of Consideration                                                                                                                            | 75,00,000 |
| Less: Expenditure in connection with transfer                                                                                                          | 50,000    |
| Net Sales Consideration                                                                                                                                | 74,50,000 |
| Less: Cost of acquisition [₹ 13,00,000 (higher of actual cost to the previous owner of ₹ 10 lakhs and Fair market value as on 1.4.2001 of ₹ 13 lakhs)] | 13,00,000 |
| Less: cost of improvements                                                                                                                             | 10,00,000 |
|                                                                                                                                                        | 51,50,000 |
| Less: Exemption u/s 54 – in respect of residential house purchased on 20.12.2025 for Rs. 12,00,000                                                     | 12,00,000 |
| Taxable Long Term Capital Gains                                                                                                                        | 39,50,000 |

**Illustration 03 [PYQ Sep 2024]**

Mr. Raj a resident individual, aged 69 years sold an urban agricultural land for ₹ 75,00,000 to Mr. Vipul on December 15, 2025 when the stamp duty value of agricultural land was ₹ 95 lakhs. However, the “agreement to sell” the agricultural land was entered on July 15, 2025 and Mr. Vipul gave ₹ 4 lakhs as advance through IMPS. The stamp duty value at the time of

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FVC SDV (Agreement)  
 SC  
 110% SC  
 (-) F. Exp 1% of 75L  
 MC

85L  
 75L  
 82.5L

As per Sec 50C  
 SDV exceed  
 110% of Soli Value  
 ∴ FVC = SDV  
 85L  
 75,00,000

84,25,000



$$\begin{array}{r}
 \text{₹ 60A} \quad \text{AI} \quad 40L \\
 \text{₹ 54B} \quad \text{₹ 73.40L} \quad \downarrow \\
 \text{₹ 73.40,000} \\
 \text{₹ 40,00,000} \\
 \hline
 \text{₹ 33,40,000}
 \end{array}$$

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agreement was ₹ 85 lakhs. Mr. Raj paid 1% of sale consideration as commission to a broker. The land was purchased by him on May 15, 2002 for ₹ 10.85 lakhs and it was being used for agricultural purposes by him since its purchase.

Mr. Raj purchased another agricultural land in rural area on January 1, 2026 for ₹ 40 lakhs and this land was sold by him on March 12, 2026 for ₹ 45 lakhs and he invested the entire sale proceeds in fixed deposits with a nationalized bank on the same day.

Compute capital gain for assessment year 2026-27 if Mr. Raj exercises the option of shifting out of the default tax regime provided under section 115BAC(1A).

**Solution**

#### Computation of Capital Gains of Mr. Raj for A.Y.2026-27

| Particulars                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | ₹         |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| Net Sales Consideration                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 84,25,000 |
| Less: cost of acquisition                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 10,85,000 |
|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            | 73,40,000 |
| Less: Exemption u/s 54B                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 40,00,000 |
| Long Term capital Gain                                                                                                                                                                                                                                                                                                                                                                                                                                                                     | 33,40,000 |
| <b>Capital gain on sale of rural agricultural land</b>                                                                                                                                                                                                                                                                                                                                                                                                                                     |           |
| As per section 54B, if the new agricultural land is transferred within 3 years from the date of its purchase, while computing the capital gains on transfer of such new agricultural land, the cost of acquisition of such land would be reduced by the amount of capital gain claimed as exempted. However, since rural agricultural is not a capital asset, no capital gain would arise on sale of such land even though it is transferred within 3 years from the date of its purchase. |           |

**Note [Alternative answer]** – Mr. Raj transferred urban agricultural land on 15.12.2025 and purchased rural agricultural land on 1.1.2026 which is sold on 12.3.2026. Since the rural agricultural land is sold within the same previous year in which original asset was transferred i.e., P.Y. 2025-26, a view can be taken that the exemption under section 54B would not be available as at the time of filing return of income such acquired land does not exist. In such case, long term capital gain would be ₹ 73,40,000.

#### Illustration 04 [RTP May 2022 & PYQ May 2018]

Mr. Aditya is a proprietor of Star Stores having 2 units. On 1.4.2025, he has transferred Unit 2, which he started in 2004-05, by way of slump sale for a total consideration of ₹ 18 lakhs. The professional fees & brokerage paid for this transfer are ₹ 78,000. His Balance Sheet as on 31-03-2025 is as under :

| Liabilities         | ₹         | Assets    | Unit 1 ₹  | Unit 2 ₹ | Total     |
|---------------------|-----------|-----------|-----------|----------|-----------|
| Own Capital         | 20,50,000 | Land      | 12,75,000 | 7,50,000 | 20,25,000 |
| Revaluation reserve | 2,50,000  | Furniture | 2,00,000  | 5,00,000 | 7,00,000  |



|                                  |           |         |           |           |           |
|----------------------------------|-----------|---------|-----------|-----------|-----------|
| Bank Loan (70% for Unit 1)       | 8,50,000  | Debtors | 2,00,000  | 3,50,000  | 5,50,000  |
| Trade Creditors (20% for Unit 2) | 4,50,000  | Patents | -         | 7,25,000  | 7,25,000  |
| Unsecured Loan (30% for Unit 2)  | 4,00,000  |         |           |           |           |
|                                  | 40,00,000 |         | 16,75,000 | 23,25,000 | 40,00,000 |

**Other Information:**

- (i) Land of Unit 2 was purchased at ₹ 5,00,000 in the year 2004 and revalued at ₹ 7,50,000 as on 31.3.2025.
- (ii) No individual value of any asset is considered in the transfer deed.
- (iii) Patents were acquired on 01-12-2023 on which no depreciation has been provided.
- (iv) Furniture of Unit 2 of ₹ 5,00,000 were purchased on 01-12-2024 on which no depreciation has been provided.
- (v) Fair market value of capital asset transferred by way of slump sale of Unit 2 is ₹ 18,10,000.

Compute the capital gain for A.Y. 2026-27.

**Solution**

As per section 50B, any profits and gains arising from the slump sale effected in the previous year shall be chargeable to income-tax as capital gains arising from the transfer of capital assets and shall be deemed to be the income of the previous year in which the transfer took place.

If the assessee owned and held the undertaking transferred under slump sale for more than 36 months before slump sale, the capital gain shall be deemed to be long-term capital gain. Indexation benefit is not available in case of slump sale as per section 50B(2).

**Computation of capital gain on slump sale of Unit 2**

| Particulars                                                                                                                                                                                                                                                                            | ₹         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| Full value of consideration for slump sale of Unit 2 [Fair market value of capital asset transferred by way of slump sale (i.e., ₹ 18,10,000) or fair market value of the consideration received (value of the monetary consideration received i.e., ₹ 18,00,000) whichever is higher] | 18,10,000 |
| Less: Expenses on sale [professional fees & brokerage]                                                                                                                                                                                                                                 | 78,000    |
| Net full value of consideration                                                                                                                                                                                                                                                        | 17,32,000 |
| Less: Cost of acquisition, being the net worth of Unit 2 (Note 1)                                                                                                                                                                                                                      | 13,35,781 |
| Long term capital gains arising on slump sale                                                                                                                                                                                                                                          | 3,96,219  |
| (The capital gains is long-term as the Unit 2 is held for more than 36 months)                                                                                                                                                                                                         |           |

**Notes**

1. Computation of net worth of Unit 2



| Particulars                                           |          | ₹         |
|-------------------------------------------------------|----------|-----------|
| 1. Book value of non-depreciable assets               |          |           |
| i. Land (Revaluation not to be considered)            |          | 5,00,000  |
| ii. Debtors                                           |          | 3,50,000  |
| 2. Written down value of depreciable assets u/s 43(6) |          |           |
| i. Furniture (See Note 2)                             |          | 4,75,000  |
| ii. Patents (See Note 3)                              |          | 4,75,781  |
| Aggregate value of total assets                       |          | 18,00,781 |
| Less: Current liabilities of Unit 2                   |          |           |
| Bank Loan [₹ 8,50,000 x 30%]                          | 2,55,000 |           |
| Trade Creditors [₹ 4,50,000 x 20%]                    | 90,000   |           |
| Unsecured Loan [₹ 4,00,000 x 30%]                     | 1,20,000 | 4,65,000  |
| Net worth of unit 2                                   |          | 13,35,781 |

### 2. Written down value of furniture as on 1.4.2025

|                                                           |          |
|-----------------------------------------------------------|----------|
| Value of patents                                          | ₹        |
| Cost as on 1.12.2024                                      | 5,00,000 |
| Less: Depreciation @ 10% x 50% for Financial Year 2024-25 | 25,000   |
| WDV as on 1.4.2025                                        | 4,75,000 |

### 3. Written down value of patents as on 1.4.2024

|                                                           |          |
|-----------------------------------------------------------|----------|
| Value of patents                                          | ₹        |
| Cost as on 1.12.2023                                      | 7,25,000 |
| Less: Depreciation @ 25% x 50% for Financial Year 2023-24 | 90,625   |
| WDV as on 1.4.2024                                        | 6,34,375 |
| Less: Depreciation @ 25% for Financial Year 2024-25       | 1,58,594 |
| WDV as on 1.4.2025                                        | 4,75,781 |

### Illustration 05 [MTP Nov 2021 & PYQ Nov 2020]

Mr. Gyaanchand purchased 1200 shares of "A" limited at ₹ 130 per share on 26.02.1979. "A" limited issued him 600 bonus shares on 20.02.2005. The fair market value of these shares at Mumbai Stock Exchange as on 1.04.2001 was ₹ 900 per share and ₹ 2,000 per share as on 31.01.2018. On 07.07.2025 Mr. Gyaanchand sold all 1800 shares @ ₹ 2,400 per share at Mumbai Stock Exchange and securities transaction tax was paid. Compute capital gain chargeable to tax in the hands of Mr. Gyaanchand for the A.Y.2026-27.

### Solution

#### Computation of capital gain of Mr. Gyaanchand for the A.Y.2026-27

|               |   |   |
|---------------|---|---|
| Particulars   | ₹ | ₹ |
| Capital Gains |   |   |



|                                                                                                                    |           |          |
|--------------------------------------------------------------------------------------------------------------------|-----------|----------|
| In respect of 600 shares (bonus shares)                                                                            |           |          |
| Full value of consideration [600 shares x ₹ 2,400 per share]                                                       | 14,40,000 |          |
| Less: Cost of acquisition [600 shares x ₹ 2,000]                                                                   | 12,00,000 | 2,40,000 |
| Higher of (i) and (ii), below                                                                                      |           |          |
| (i) Nil, being cost of acquisition                                                                                 |           |          |
| (ii) ₹ 2,000 per share, being the lower of                                                                         |           |          |
| FMV as on 31.1.2018 - ₹ 2,000 per share                                                                            |           |          |
| Sale consideration - ₹ 2,400 per share                                                                             |           |          |
| In respect of 1,200 original shares                                                                                |           |          |
| Full value of consideration [1,200 shares x ₹ 2,400]                                                               | 28,80,000 |          |
| Less: Cost of acquisition [1,200 shares x ₹ 2,000]                                                                 | 24,00,000 | 4,80,000 |
| Higher of (a) and (b), below                                                                                       |           |          |
| (a) ₹ 900, being original cost of acquisition (₹ 130) or FMV as on 1.4.2001 (₹ 900), at the option of the assessee |           |          |
| (b) ₹ 2,000 per share, being the lower of                                                                          |           |          |
| FMV as on 31.1.2018 - ₹ 2,000 per share                                                                            |           |          |
| Sale consideration - ₹ 2,400 per share                                                                             |           |          |
| Long term capital gain                                                                                             |           | 7,20,000 |

### Illustration 06 [MTP Sep 2024 & RTP Nov 2023]

Determine the capital gains/loss on transfer of listed equity shares (STT paid both at the time of acquisition and transfer of shares) and units of equity oriented mutual fund (STT paid at the time of transfer of units) for the A.Y.2026-27 and tax, if any, payable thereon, in the following cases, assuming that these are the only transactions covered under section 112A during the P.Y.2025-26 in respect of these assessee:

- (a) Mr. Shagun purchased 300 shares in A Ltd. on 20.5.2017 at a cost of ₹ 400 per share. He sold all the shares of A Ltd. on 31.5.2025 for ₹ 1200. The price at which these shares were traded in National Stock Exchange on 31.1.2018 is as follows –

$$LTG: (1200 - 400) \times 300 \text{ sh} = 1,50,000$$

$$TAX = (1,50,000 - 1,25,000) \times 12.5\% = 3125 + 4\% \text{ cess} = 3250$$

| Particulars           | Amount in ₹ |
|-----------------------|-------------|
| Highest Trading Price | 700         |
| Average Trading Price | 680         |
| Lowest Trading Price  | 660         |

|               |      |
|---------------|------|
| FMV 31/1/18   | 700  |
| FVE           | 1200 |
| Lower         | 700  |
| Actual        | 400  |
| Higher is COA | 700  |

- (b) Mr. Raj purchased 200 units of equity oriented fund, Fund A on 1.2.2017 at a cost of ₹ 550 per unit. The units were not listed at the time of purchase. Subsequently, units of Fund A were listed on 1.1.2018 on the National Stock Exchange. Mr. Raj sold all the units on 3.4.2025 for ₹ 900 each. The details relating to quoted price on National Stock Exchange and net asset value of the units are given hereunder:

| Particulars | Fund A      |
|-------------|-------------|
|             | Amount in ₹ |

|             |           |          |
|-------------|-----------|----------|
| FVE         | 200 x 900 | 1,80,000 |
| (-) COA     | 200 x 550 | 1,10,000 |
| FMV 31/1/18 | 750       |          |
| FVE         | 900       |          |
| L           | 750       |          |
| Ac.         | 550       |          |

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H

150  
112A

30,000

No Tax

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|                              |                    |
|------------------------------|--------------------|
| Highest Trading Price        | 750 (on 31.1.2018) |
| Average Trading Price        | 700 (on 31.1.2018) |
| Lowest Trading Price         | 650 (on 31.1.2018) |
| Net Asset Value on 31.1.2018 | 800                |

### Solution

For the purpose of computation of long-term capital gains chargeable to tax under section 112A, the cost of acquisition in relation to the long-term capital asset, being an equity share in a company or a unit of an equity oriented fund or a unit of a business trust acquired before 1st February, 2018 shall be the higher of

- (a) cost of acquisition of such asset, i.e., actual cost; and
- (b) lower of
  - (i) the fair market value of such asset as on 31.1.2018; and
  - (ii) the full value of consideration received or accruing as a result of the transfer of the capital asset.

- a. The fair market value of listed equity shares as on 31.1.2018 is the highest price quoted on the recognized stock exchange as on that date.

Accordingly, long-term capital gain on transfer of STT paid listed equity shares by Mr. Shagun would be determined as follows:

The FMV of shares of A Ltd. would be ₹ 700, being the highest price quoted on National Stock Exchange on 31.1.2018. The cost of acquisition of each equity share in A Ltd. would be ₹ 700, being higher of actual cost i.e., ₹ 400 and ₹ 700 [being the lower of FMV of ₹ 700 as on 31.1.2018 (i.e., the highest trading price) and actual sale consideration of ₹ 1,200]. Thus, the long-term capital gain would be ₹ 1,50,000 i.e.,  $(₹ 1,200 - ₹ 700) \times 300$  shares. The long-term capital gain of ₹ 25,000 (i.e., the amount in excess of ₹ 1,25,000) would be subject to tax @ 12.5% under section 112A (plus cess @ 4%), without benefit of indexation. The tax on capital gain @ 13% would be ₹ 3,250  $(₹ 25,000 \times 13\%)$  ✗

In the case of units listed on recognised stock exchange on the date of transfer, the FMV as on 31.1.2018 would be the highest trading price on recognised stock exchange as on 31.1.2018 (if units are listed on that date), else, it would be the net asset value as on 31.1.2018 (where units are unlisted on that date).

- b. Accordingly, the FMV of units of Fund A as on 31.1.2018 would be ₹ 750 (being the highest trading price on 31.1.2018, since the units of Fund A are listed on that date). The cost of acquisition of a unit of Fund A would be ₹ 750, being higher of actual cost i.e., ₹ 550 and ₹ 750 (being the lower of FMV of ₹ 750 as on 31.1.2018 and actual sale consideration of ₹ 900). Thus, the long-term capital gains on sale of units of Fund A would be ₹ 30,000  $(₹ 900 - ₹ 750) \times 200$  units.

Since the long term capital gains on sale of units of Fund A is ₹ 30,000, which is less than ₹ 1,25,000, the said sum is not chargeable to tax under section 112A.



12.5%  
+ 4% Cess  
13%

**Illustration 07 [MTP Nov 2022 & RTP May 2023]**

Examine the taxability of capital gains in the following scenarios for the Assessment Year 2026-27, determine the taxable amount and rate of tax applicable:

Mr. Satish is the owner of a residential house which was purchased on 1st July, 2017 for ₹ 10,50,000. He sold the said house on 14th October, 2025 for ₹ 25,00,000. Valuation as per stamp valuation authorities was ₹ 45,00,000. He invested ₹ 15,00,000 in RECL Bonds on 20th March, 2026.

**Solution**

**Computation of Capital Gains on Sale of residential house**  
**[LTCA since held for more than 24 months]**

|           | Particulars                                                                                                      | Amount    |
|-----------|------------------------------------------------------------------------------------------------------------------|-----------|
| <b>a)</b> | <b>20% with Indexation Benefit</b>                                                                               |           |
|           | Full value of consideration [stamp duty value, since it exceeds 110% of actual sale consideration]               | 45,00,000 |
|           | Less: Indexed cost of acquisition [₹ 10,50,000 x 376/272]                                                        | 14,51,471 |
|           |                                                                                                                  | 30,48,529 |
|           | Less: Deduction under section 54EC                                                                               | 15,00,000 |
|           | Since ₹ 15,00,000 is invested in RECL bonds on 20th March 2026 i.e., before six months from the date of transfer |           |
|           | Long term capital gain                                                                                           | 15,48,529 |
|           | Long-term capital gain taxable u/s 112 @ 20%                                                                     | 3,09,706  |
| <b>b)</b> | <b>12.5% without indexation benefit</b>                                                                          |           |
|           | Full value of consideration [stamp duty value, since it exceeds 110% of actual sale consideration]               | 45,00,000 |
|           | Less: Cost of Acquisition                                                                                        | 10,50,000 |
|           |                                                                                                                  | 34,50,000 |
|           | Less: Deduction under section 54EC                                                                               | 15,00,000 |
|           | Since ₹ 15,00,000 is invested in RECL bonds on 20th March 2026 i.e., before six months from the date of transfer |           |
|           | Long term capital gain                                                                                           | 19,50,000 |
|           | Long-term capital gain taxable u/s 112 @ 12.5%                                                                   | 2,43,750  |

Hence, 12.5% without indexation benefit is more beneficial for assessee

**Illustration 08 [PYQ Jan 2026] — Slump sale**

Mr. Paras has a proprietary business since P.Y. 2017-18. He has transferred this business on 01.04.2025 by way of a slump sale for a total consideration of ₹ 40 Lakh. The fair market value of his capital assets as on 01.04.2025 is ₹ 35 Lakh. He has incurred expenses for this deal of ₹ 1,50,000. His Balance Sheet as on 31.03.2025 is given below:

| Liabilities | ₹ | Assets | ₹ |
|-------------|---|--------|---|
|-------------|---|--------|---|

$$FMC = SC = 40L \quad \left. \begin{array}{l} \\ \end{array} \right\} \text{higher } 40L$$

$$FMV = 35L$$

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(-) Exp

Net

(-) CoA (Net worth)

$$\begin{array}{r} 1.5L \\ 38.50L \\ \hline 21.90L \end{array}$$



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|                        |                      |              |                     |
|------------------------|----------------------|--------------|---------------------|
| <del>Own Capital</del> | <del>20,00,000</del> | Building     | 18,00,000           |
| Bank Loan              | <del>5,00,000</del>  | Debtors      | 5,00,000            |
| Unsecured Loans        | <del>2,50,000</del>  | Machinery    | <del>5,00,000</del> |
| Creditors              | 4,10,000             | Other assets | <del>3,60,000</del> |
|                        | 31,60,000            |              | 31,60,000           |

Other information :

- 1) Bank loan balance includes ₹ 2 lakh for personal purpose.
- 2) Machinery costing ₹ 50,000 has been allowed 100% as deduction u/s 35AD
- 3) Other assets include self-generated goodwill of ₹ 60,000. — NIL
- 4) Unsecured loans include ₹ 1 lakh for amount payable for the purchase of the ornaments of his wife.

T.A = 30.50L  
D.L = 8.60L } 21.90L

Compute the capital gain/loss for the A.Y. 2026-27.

### Solution

#### Computation of capital gains on slump sale for A.Y. 2026-27

| Particulars                                                                                                                                              | ₹         |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|
| Full value of consideration [Higher of (i) FMV of capital assets on 1.4.2025 of ₹ 35 lakhs or (ii) FMV of Monetary consideration received of ₹ 40 lakhs] | 40,00,000 |
| Less: Expenses for transfer                                                                                                                              | 1,50,000  |
|                                                                                                                                                          | 38,50,000 |
| Less: Net worth (See Note below)                                                                                                                         | 21,90,000 |
| Long-term capital gain, since the business is held for more than 36 months [Indexation benefit not available]                                            | 16,60,000 |
| Note - Computation of net worth                                                                                                                          |           |
| Building                                                                                                                                                 | 18,00,000 |
| Machinery [₹ 5,00,000 – ₹ 50,000, being the amount allowed as 100% as deduction u/s 35AD]                                                                | 4,50,000  |
| Debtors                                                                                                                                                  | 5,00,000  |

|                                                                                                          |          |           |
|----------------------------------------------------------------------------------------------------------|----------|-----------|
| Other assets (₹ 3,60,000 – ₹ 60,000, being the amount of self-generated goodwill)                        |          | 3,00,000  |
| Total assets                                                                                             |          | 30,50,000 |
| Less: Bank Loan (₹ 5,00,000 – ₹ 2,00,000, being loan for personal purpose)                               | 3,00,000 |           |
| Unsecured Loan (₹ 2,50,000 – ₹ 1,00,000, being the amount payable for purchase of ornaments of his wife) | 1,50,000 |           |
| Creditors                                                                                                | 4,10,000 | 8,60,000  |
| Net worth                                                                                                |          | 21,90,000 |

Illustration 09 [PYQ Sep 2025]

CA Jasmeet Singh



Mr. Mani, a resident individual aged about 45 years, acquired a plot of land in March 2002 for ₹ 12,25,000 and paid stamp duty of ₹ 1,00,000 on registry of the land. He sold this land on 10th October 2025 for ₹ 80,00,000. The stamp duty valuation assessed by sub registrar was ₹ 83,50,000. Advise Mani about which option of computation of capital gains is most suitable for him as far as his tax liability is concerned on the assumption that he has no other income chargeable to tax and has not opted out of the provision of section 115BAC. Costs Inflation Index for various financial years are as under:

|         |     |
|---------|-----|
| 2001-02 | 100 |
| 2002-03 | 105 |
| 2006-07 | 122 |
| 2025-26 | 376 |

$$1/3/02 \text{ Land Purch} = \text{COA} = 12.25L + 1L = 13.25L$$

$$10/10/25 \text{ SC} = 80L ; \text{SDV} = 83.50L \left\{ \begin{array}{l} \text{As per sec} \\ \text{FVE} = 80L \\ \text{110\%} = 88L \end{array} \right.$$

### Solution

#### Computation of tax liability of Mr. Mani for the A.Y. 2026-27 as per the default tax regime

| Particulars                                                                                                                                                                                                                                               | ₹         | ₹           |
|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-------------|
| <b>Capital Gain</b>                                                                                                                                                                                                                                       |           |             |
| Actual sale consideration                                                                                                                                                                                                                                 | 80,00,000 |             |
| Valuation as per Stamp duty Authority on the date of agreement (Since the stamp duty value does not exceed 110% of the actual sale consideration, the actual sales consideration shall be taken to be the full value of consideration as per section 50C) | 83,50,000 | 80,00,000   |
| Less: Cost of acquisition of Plot (₹ 12,25,000 + ₹ 1,00,000)                                                                                                                                                                                              |           | (13,25,000) |
| Long Term Capital Gain/ Total Income                                                                                                                                                                                                                      |           | 66,75,000   |
| Tax on LTCG u/s 112                                                                                                                                                                                                                                       |           |             |
| Since land is acquired before 23.7.2024 and transferred on or after 23.7.2024, Mr. Mani has an option to pay tax @12.5% on LTCG computed without indexation benefit or @20% on LTCG computed with indexation benefit.                                     |           |             |
| Capital Gain without Indexation (Tax @12.5%)<br>[₹ 80,00,000 - ₹ 13,25,000] = ₹ 66,75,000<br>Tax = [₹ 66,75,000 - ₹ 4,00,000, being unexhausted BEL] x 12.5% = ₹ 7,84,375 (A)                                                                             |           |             |
| Capital Gain with Indexation (Tax @20%)<br>[₹ 80,00,000 - (₹ 13,25,000 x 376/100)] = ₹ 30,18,000                                                                                                                                                          |           |             |
| Tax = [₹ 30,18,000 - ₹ 4,00,000, being unexhausted BEL] x 20% = ₹ 5,23,600 (B)                                                                                                                                                                            |           |             |
| Lower of (A) or (B)                                                                                                                                                                                                                                       |           | 5,23,600    |
| Add: Surcharge @10% [Since the total income exceeds ₹ 50,00,000 but does not exceed ₹ 1 crore]                                                                                                                                                            |           | 52,360      |
|                                                                                                                                                                                                                                                           |           | 5,75,960    |



|                                                            |  |            |
|------------------------------------------------------------|--|------------|
| Add: HEC @4%                                               |  | 23,038.4   |
| Tax liability                                              |  | 5,98,998.4 |
| Tax liability (Rounded off)                                |  | 5,99,000   |
| Note: Indexation option is more beneficial to the assessee |  |            |

**Illustration 10 [RTP May 2025]**

Ms. Priya has always been financially aware and strategic with her investments. In January 2022, she saw an opportunity in gold and purchased gold jewellery worth ₹ 3,25,000, **COA** believing it would be a safe investment for the future. In October 2025, gold prices increased and she decided to sell her jewellery on 31.10.2025 for ₹ 4,75,000. **FVL** She also sold her house property in Delhi on 01.12.2025 for ₹ 80 lakhs. The stamp duty value of property at the time of transfer was ₹ 90 lakhs. **SL**

She purchased this property on 15.07.1998 for ₹ 8.80 lakhs. The **FMV** of the property as on 1st April, 2001 was ₹ 10.8 lakhs and Stamp duty value on the said date was ₹ 10 lakhs. She had incurred brokerage and other expenses @1% on purchase price at that time.

Compute the **capital gain tax** to be paid by Ms. Priya for A.Y. 2026-27 assuming her other income exceeds the basic exemption limit.

CII – F.Y. 2001-02: 100; F.Y. 2021-22: 317; F.Y. 2024-25: 376

**Solution****Computation of capital gain tax paid by Ms. Priya for A.Y. 2026-27**

| Particulars                                                                                                                                                   | ₹         | ₹         |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-----------|
| On sale of jewellery                                                                                                                                          |           |           |
| Sale consideration                                                                                                                                            | 4,75,000  |           |
| Less: Cost of acquisition (As transfer is on or after 23.07.2024, the indexation benefit would not be available)                                              | 3,25,000  |           |
| Long term capital gains [Since jewellery is sold on or after 23.7.2024 and held for more than 24 months]                                                      |           | 1,50,000  |
| On sale of house property                                                                                                                                     |           |           |
| Full Value of Consideration [Stamp duty value of ₹ 90 lakhs, since stamp duty value of ₹ 90 lakhs exceed actual consideration of ₹ 80 lakhs by more than 10%] | 90,00,000 |           |
| Less: Cost of acquisition [₹ 10,00,000] (As transfer is on or after 23.07.2024, the indexation benefit would not be available)                                | 10,00,000 | 80,00,000 |
| Cost of acquisition                                                                                                                                           |           |           |
| Higher of -                                                                                                                                                   |           |           |
| Actual cost ₹ 8,80,000 + ₹ 8,800 = ₹ 8,88,800 and                                                                                                             |           |           |
| Lower of Fair Market Value (FMV) as on 1.4.2001 of ₹ 10.8 lakhs and stamp duty value of ₹ 10 lakhs.                                                           |           |           |



|                                                                                                                                                                                                                                                                                                                                     |           |           |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|-----------|
| Capital Gain chargeable to tax                                                                                                                                                                                                                                                                                                      |           | 81,50,000 |
| Tax on Capital Gains                                                                                                                                                                                                                                                                                                                |           |           |
| Tax on LTCG on sale of jewellery [₹ 1,50,000 x 12.50%]                                                                                                                                                                                                                                                                              | 18,750    |           |
| Tax @12.5% on LTCG on sale of house property [As the asset is a long term capital asset, being land or building acquired before 23.07.2024 and transferred on or after 23.07.2024 by a resident individual, the tax shall be computed with indexation @20% and without indexation @12.5%, whichever is beneficial to the assessee.] |           |           |
| Tax @20% with indexation                                                                                                                                                                                                                                                                                                            |           |           |
| Sale consideration ₹ 90,00,000                                                                                                                                                                                                                                                                                                      |           |           |
| Less: Indexed cost of acquisition ₹ 10,00,000 x 376/100 = ₹ 37,60,000                                                                                                                                                                                                                                                               |           |           |
| LTCG = ₹ 52,40,000                                                                                                                                                                                                                                                                                                                  |           |           |
| Tax @20% = ₹ 52,40,000 x 20% = ₹ 10,48,000                                                                                                                                                                                                                                                                                          |           |           |
| Tax @12.5% without indexation                                                                                                                                                                                                                                                                                                       |           |           |
| Tax @12.5% = ₹ 80,00,000 x 12.5% = ₹ 10,00,000                                                                                                                                                                                                                                                                                      | 10,00,000 | 10,18,750 |
| Add: Surcharge @10% [Since total income exceeds ₹ 50 lakhs but does not exceed ₹ 1 crore]                                                                                                                                                                                                                                           |           | 1,01,875  |
|                                                                                                                                                                                                                                                                                                                                     |           | 11,20,625 |
| Add: HEC@4%                                                                                                                                                                                                                                                                                                                         |           | 44,825    |
| Tax on Capital Gain                                                                                                                                                                                                                                                                                                                 |           | 11,65,450 |

### ICAI Study Material Questions

#### TYQ Question 01

Mr. Mithun purchased 100 equity shares of M/s Goodmoney Co. Ltd. on 01-04-2007 at rate of ₹ 1,000 per share in public issue of the company by paying securities transaction tax. Company allotted bonus shares in the ratio of 1:1 on 01.12.2024. He has also received dividend of ₹ 10 per share on 01.05.2025.

He has sold all the shares on 01.10.2025 at the rate of ₹ 4,000 per share through a recognized stock exchange and paid brokerage of 1% and securities transaction tax of 0.02%.

Compute his total income and tax liability for A.Y. 2026-27 if Mr. Mithun opts out of the default tax regime, assuming that he is having other income of ₹ 8,00,000. Fair market value of each share of M/s Goodmoney Co. Ltd. on 31.1.2018 is ₹ 2,000.



**Solution****Computation of total income & tax liability of Mr. Mithun for A.Y. 2026-27**

| Particulars                                                                                                       |        | ₹         |
|-------------------------------------------------------------------------------------------------------------------|--------|-----------|
| Long term capital gains on sale of original shares                                                                |        |           |
| Gross sale consideration (100 x ₹ 4,000)                                                                          |        | 4,00,000  |
| Less: Brokerage@1%                                                                                                |        | 4,000     |
| Net sale consideration                                                                                            |        | 3,96,000  |
| Less: Cost of acquisition (100 x ₹ 2,000) (Refer Note 1)                                                          |        | 2,00,000  |
| Long term capital gains                                                                                           |        | 1,96,000  |
| Short term capital gains on sale of bonus shares                                                                  |        |           |
| Gross sale consideration (100 x ₹ 4,000)                                                                          |        | 4,00,000  |
| Less: Brokerage@1%                                                                                                |        | 4,000     |
| Net sale consideration                                                                                            |        | 3,96,000  |
| Less: Cost of acquisition of bonus shares [Nil as such shares are allotted after 1.04.2001]                       |        | NIL       |
| Short term capital gains [Since bonus shares are held for less than 12 months before sale]                        |        | 3,96,000  |
| Income from other sources                                                                                         |        |           |
| Dividend received from M/s Goodmoney Co. Ltd. is taxable in the hands of shareholders [200 shares x 10 per share] |        | 2,000     |
| Other income                                                                                                      |        | 8,00,000  |
| Total Income                                                                                                      |        | 13,94,000 |
| Tax Liability                                                                                                     |        |           |
| Tax on STCG u/s 111A<br>20% of ₹ 3,96,000                                                                         |        | 79,200    |
| Tax on LTCG u/s 112A<br>12.5% of (₹ 1,96,000 - ₹ 1,25,000)                                                        |        | 8,875     |
| Tax on other income of ₹ 8,02,000                                                                                 |        |           |
| ₹ 2,50,000 to ₹ 5,00,000@5%                                                                                       | 12,500 |           |
| ₹ 5,00,000 to ₹ 8,02,000 @20%                                                                                     | 60,400 | 72,900    |
|                                                                                                                   |        | 1,60,975  |
| Add: Health and education cess @4%                                                                                |        | 6,439     |
| Tax liability                                                                                                     |        | 1,67,414  |
| Tax liability (rounded off)                                                                                       |        | 1,67,410  |

**Notes:**

- Cost of acquisition of such equity shares acquired before 1.2.2018 is higher of
  - Cost of acquisition i.e., ₹ 1,000 per share and
  - lower of Fair market value of such asset i.e., ₹ 2,000 per share and Full value of consideration i.e., ₹ 4,000 per share.



Therefore, the cost of acquisition of original share is ₹ 2,000 per share.

- Securities transaction tax is not allowable as deduction.

### TYQ Question 02

Aarav converts his plot of land purchased in July, 2004 for ₹ 80,000 into stock-in-trade on 31st March, 2025. The fair market value as on 31.3.2025 was ₹ 3,00,000. The stock-in-trade was sold for ₹ 3,25,000 in the month of January, 2026.

Find out the taxable income, if any, and if so under which head of income and for which Assessment Year?

Cost Inflation Index: F.Y. 2004-05:113; F.Y. 2024-25: 363; F.Y. 2025-26: 376

### Solution

Conversion of a capital asset into stock-in-trade is a transfer within the meaning of section 2(47) in the previous year in which the asset is so converted. However, the capital gains will be charged to tax only in the year in which the stock-in-trade is sold.

The fair market value on the date of conversion would be deemed to be the full value of consideration for transfer of the asset as per section 45(2). The sale price less the fair market value on the date of conversion would be treated as the business income of the year in which the stock-in-trade is sold.

Therefore, in this problem, both capital gains and business income would be charged to tax in the A.Y. 2026-27.

| Particulars                                                                                         | ₹        |          |
|-----------------------------------------------------------------------------------------------------|----------|----------|
| Profits & Gains of Business or Profession                                                           |          |          |
| Sale price of stock-in-trade                                                                        | 3,25,000 |          |
| Less: Fair market value on the date of conversion                                                   | 3,00,000 |          |
| Capital Gains                                                                                       |          | 25,000   |
| Full value of consideration (Fair market value on the date of conversion)                           | 3,00,000 |          |
| Less: Cost of acquisition [No indexation benefit since conversion took place on or after 23.7.2024] | 80,000   |          |
| Long-term capital gain                                                                              |          | 2,20,000 |
| Taxable Income                                                                                      |          | 2,45,000 |

### TYQ Question 03 *Imp.*

Mrs. Harshita purchased a land at a cost of ₹ 35 lakhs in the F.Y. 2004-05 and held the same as her capital asset till 20th March, 2024.

She started her real estate business on 21st March, 2024 and converted the said land into stock-in-trade of her business on the said date, when the fair market value of the land was ₹ 210 lakhs.

She constructed 15 flats of equal size, quality and dimension. Cost of construction of each flat is ₹ 10 lakhs. Construction was completed in February, 2026. She sold 10 flats at ₹ 30 lakhs per flat in March, 2026. The remaining 5 flats were held in stock as on 31st March, 2026.

Prior to 23/7/24 ∴ ICAI ex Tax = 20%.



Land — SIT  
(FHV = 210L)

(TRANSFER)

Clearance → Taxable → SIT sold.

3D.15

She invested ₹ 50 lakhs in bonds issued by National Highways Authority of India on 31st March, 2026 and another ₹ 50 lakhs in bonds of Rural Electrification Corporation Ltd. in April, 2026.

Compute the amount of chargeable capital gain and business income in the hands of Mrs. Harshita arising from the above transactions for A.Y. 2026-27 indicating clearly the reasons for treatment for each item. ✓ ✓

[Cost Inflation Index: F.Y. 2004-05: 113; F.Y. 2023-24: 348; F.Y. 2025-26: 376]

### Solution

#### Computation of capital gains and business income of Harshita for A.Y. 2026-27

| Particulars                                                                                                                     | ₹                |
|---------------------------------------------------------------------------------------------------------------------------------|------------------|
| <b>Business Income</b>                                                                                                          |                  |
| Sale price of flats [10 × ₹ 30 lakhs]                                                                                           | 3,00,00,000      |
| Less: Cost of flats                                                                                                             |                  |
| Fair market value of land on the date of conversion [₹ 210 lakhs × 2/3]                                                         | 1,40,00,000      |
| Cost of construction of flats [10 × ₹ 10 lakhs]                                                                                 | 1,00,00,000      |
| <b>Business income chargeable to tax for A.Y.2026-27</b>                                                                        | <b>60,00,000</b> |
| <b>Capital Gains</b>                                                                                                            |                  |
| Fair market value of land on the date of conversion deemed as the full value of consideration for the purposes of section 45(2) | 2,10,00,000      |
| Less: Indexed cost of acquisition [₹ 35,00,000 × 348/113]                                                                       | 1,07,78,761      |
|                                                                                                                                 | 1,02,21,239      |
| Proportionate capital gains arising during A.Y. 2026-27 [₹ 1,02,21,239 × 2/3]                                                   | 68,14,159        |
| Less: Exemption under section 54EC                                                                                              | 50,00,000        |
| <b>Capital gains chargeable to tax for A.Y.2026-27</b>                                                                          | <b>18,14,159</b> |

### Notes:

1. The conversion of a capital asset into stock-in-trade is treated as a transfer under section 2(47). It would be treated as a transfer in the year in which the capital asset is converted into stock-in-trade (i.e., P.Y.2023-24, in this case).
2. As per section 45(2), the capital gains arising from the transfer by way of conversion of capital assets into stock-in-trade will be chargeable to tax only in the year in which the stock-in-trade is sold.
3. Since the capital asset is converted into stock in trade in P.Y. 2023-24 i.e., before 23.7.2024, the indexation benefit would be available. However, it will be available only up to the year of conversion of capital asset into stock-in-trade (i.e., P.Y.2023-24) and not up to the year of sale of stock-in-trade (i.e., P.Y.2025-26).
4. For the purpose of computing capital gains in such cases, the fair market value of the capital asset on the date on which it was converted into stock-in-trade shall be deemed to be the full value of consideration received or accruing as a result of the transfer of the capital asset. In this case, since only 2/3rd of the stock-in-trade (10 flats out



of 15 flats) is sold in the P.Y.2025-26, only proportionate capital gains (i.e., 2/3rd) would be chargeable to tax in the A.Y.2026-27.

5. On sale of such stock-in-trade, business income would arise. The business income chargeable to tax would be the difference between the price at which the stock-in-trade is sold and the fair market value on the date of conversion of the capital asset into stock-in-trade.
6. In case of conversion of capital asset into stock-in-trade and subsequent sale of stock-in-trade, the period of 6 months is to be reckoned from the date of sale of stock-in-trade for the purpose of exemption under section 54EC [CBDT Circular No.791 dated 2.6.2000]. In this case, since the investment in bonds of NHAI has been made within 6 months of sale of flats, the same qualifies for exemption under section 54EC. With respect to long-term capital gains arising on land or building or both in any financial year, the maximum deduction under section 54EC would be ₹ 50 lakhs, whether the investment in bonds of NHAI or RECL are made in the same financial year or next financial year or partly in the same financial year and partly in the next financial year. Therefore, even though investment of ₹ 50 lakhs has been made in bonds of NHAI during the P.Y. 2025-26 and investment of ₹ 50 lakhs has been made in bonds of RECL during the P.Y. 2026-27, both within the stipulated six month period, the maximum deduction allowable for A.Y. 2026-27, in respect of long-term capital gain arising on sale of long-term capital asset(s) during the P.Y. 2025-26, is only ₹ 50 lakhs.

#### TYQ Question 04

Mr. A is an individual carrying on business. His stock and machinery were damaged and destroyed in a fire accident which occurred in December 2025.

The value of stock lost (total damaged) was ₹ 6,50,000. Certain portion of the machinery could be salvaged. The opening balance of the block as on 1.4.2025 (i.e., WDV as on 31.3.2025 after providing depreciation for P.Y. 2024-25) was ₹ 10,80,000.

During the process of safeguarding machinery and in the fire fighting operations, Mr. A lost his gold chain and a diamond ring, which he had purchased in April, 2005 for ₹1,20,000. The market value of these two items as on the date of fire accident was ₹1,80,000.

Mr. A received the following amounts from the insurance company:

1. Towards loss of stock ₹ 4,80,000
2. Towards damage of machinery ₹ 6,00,000
3. Towards gold chain and diamond ring ₹ 1,80,000

You are requested to briefly comment on the tax treatment of the above three items under the provisions of the Income-tax Act, 1961.

#### Solution

1. Compensation towards loss of stock: Any compensation received from the insurance company towards loss/damage to stock in trade is to be construed as a trading receipt. Hence, ₹ 4,80,000 received as insurance claim for loss of stock has to be assessed under the head "Profit and gains of business or profession".



**Note** - The assessee can claim the value of stock destroyed by fire as revenue loss, eligible for deduction while computing income under the head "Profits and gains of business or profession".

2. Compensation towards damage to machinery: The question does not mention whether the salvaged machinery is taken over by the Insurance company or whether there was any replacement of machinery during the year. Assuming that the salvaged machinery is taken over by the Insurance company, and there was no fresh addition of machinery during the year, the block of machinery will cease to exist. Therefore, ₹ 4,80,000 being the excess of written down value (i.e. ₹ 10,80,000) over the insurance compensation (i.e. ₹ 6,00,000) will be assessable as a short-term capital loss.

**Note** - If new machinery is purchased in the next year, it will constitute the new block of machinery, on which depreciation can be claimed for that year.

3. Compensation towards loss of gold chain and diamond ring: Gold chain and diamond ring are capital assets as envisaged by section 2(14). They are not "personal effects", which alone are to be excluded. If any profit or gain arises in a previous year owing to receipt of insurance claim, the same shall be chargeable to tax as capital gains. The capital gains has to be computed by reducing the cost of acquisition of jewellery from the insurance compensation of ₹ 1,80,000.

#### TYQ Question 05

Mr. Sarthak entered into an agreement with Mr. Jaikumar to sell his residential house located at Kanpur on 16.08.2025 for ₹ 1,50,00,000. — **Sale Value**

The sale proceeds were to be paid in the following manner:

1. 20% through account payee bank draft on the date of agreement. — **SDV ✓**
2. 60% on the date of the possession of the property. — **Transfer.**
3. Balance after the completion of the registration of the title to the property.

Mr. Jaikumar was handed over the possession of the property on 15.12.2025 and the registration process was completed on 14.01.2026. He paid the sale proceeds as per the sale agreement.

The value determined by the Stamp Duty Authority-

1. on 16.08.2025 was ₹ 1,70,00,000;
2. on 15.12.2025 was ₹ 1,71,00,000; and
3. on 14.01.2026 was ₹ 1,71,50,000.

|         |         |                     |              |
|---------|---------|---------------------|--------------|
| SDV     | 1.70 Cr | FVC = SDV = 1.70 Cr |              |
| SV      | 1.50 Cr | (-) CoA             | 0.30 Cr      |
| 110% SV | 1.65 Cr | LTax                | 1.40 Cr      |
|         |         | (-) Ex.             | 0.55 Cr      |
|         |         |                     | <u>85 Cr</u> |

Mr. Sarthak had acquired the residential house at Kanpur on 01.04.2001 for ₹ 30,00,000.

After recovering the sale proceeds from Jaikumar, he purchased two residential house properties, one in Kanpur for ₹ 20,00,000 on 24.3.2026 and another in Delhi for ₹ 35,00,000 on 28.5.2026.

Compute the income chargeable under the head "Capital Gains" of Mr. Sarthak for the Assessment Year 2026-27.

Cost Inflation Index for Financial Year(s): 2001-02 - 100; 2025-26 - 376

**TAX?** — option  $\begin{cases} 20\% \\ 12.5\% \end{cases}$



**Solution**

Computation of income chargeable under the head “Capital Gains” of Mr. Sarthak for A.Y. 2026-27

| Particulars                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | ₹           |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|
| Capital Gains on sale of residential house                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |             |
| Actual sale consideration ₹ 1,50,00,000                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |             |
| Value adopted by Stamp Valuation Authority on the date of agreement ₹ 1,70,00,000                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |             |
| Full value of sale consideration [Stamp duty value on the date of agreement, since it exceeds 110% of the actual sale consideration]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 1,70,00,000 |
| Less: Cost of acquisition of residential house                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               | 30,00,000   |
| Long-term capital gains [Since the residential house property was held by Mr. Sarthak for more than 24 months immediately preceding the date of its transfer]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                | 1,40,00,000 |
| Less: Exemption u/s 54                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       | 55,00,000   |
| Since, long-term capital gains does not exceed ₹ 2 crore, he would be eligible for exemption in respect of both the residential house properties purchased in India. The capital gain arising on transfer of a long-term residential property shall not be chargeable to tax to the extent such capital gain is invested in the purchase of these residential house properties in India within one year before or two years after the date of transfer of original asset. Thus, he would be eligible for exemption of ₹ 55,00,000 being ₹ 20,00,000 and ₹ 35,00,000 invested on acquisition of residential house property in Kanpur and Delhi, respectively. |             |
| Long term capital gains chargeable to tax                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                    | 85,00,000   |

**Note:** It may be noted that since Sarthak has transferred residential house property on or after 23.7.2024 which was acquired before the said date, he can opt to pay tax @20% on LTCG (computed with indexation) or 12.5% on LTCG (computed without indexation) whichever is beneficial to him

$$10A = 80L + 10\% = 88L$$

$$10A = 100L$$

**TYQ Question 06**

Mrs. Yuvika bought a vacant land for ₹ 80 lakhs in May 2005. Registration and other expenses were 10% of the cost of land. She constructed a residential building on the said land for ₹ 100 lakhs during the financial year 2007-08.

She entered into an agreement for sale of the above said residential house with Mr. Johar (not a relative) in April 2015. The sale consideration was fixed at ₹ 700 lakhs and on 23.4.2015, Mrs. Yuvika received ₹ 20 lakhs as advance in cash by executing an agreement. However, due to failure on part of Mr. Johar, the said negotiation could not materialise and hence, the said amount of advance was forfeited by Mrs. Yuvika. → 01/05/2025 — (+) 02. Mrs. Yuvika, again entered into an agreement on 01.05.2025 for sale of this house at ₹ 810 lakhs. She received ₹ 80 lakhs as advance by RTGS. The stamp duty value on the

CA Jasmeet Singh

$$SDV = 890L$$

$$SV = 810L$$

$$110\% SV = 891L$$

$$See 50C$$

$$FVL = 810L (SV)$$

$$- 1\%$$

$$HL = 801.90L$$

$$(-) 10A$$



$$\begin{array}{r}
 88L \\
 100L \\
 613.9L \\
 180L \\
 50L \\
 \hline
 433.9L
 \end{array}$$

3D.19

date of agreement was ₹ 890 lakhs. The sale deed was executed and registered on 14.07.2025 for the agreed consideration. However, the State stamp valuation authority had revised the values, hence, the value of property for stamp duty purposes was ₹ 900 lakhs.

Mrs. Yuvika paid 1% as brokerage on sale consideration received.

Subsequent to sale, Mrs. Yuvika made following acquisition/investments:

1. Acquired two residential houses at Delhi and Chandigarh for ₹ 130 lakhs and ₹ 50 lakhs, respectively, on 31.1.2026 and 15.5.2026. *Unkey key.*
2. Acquired a residential house at UK for ₹ 180 lakhs on 23.3.2026. *(X)*
3. Subscribed to NHAI capital gains bond (approved under section 54EC) for ₹ 50 lakhs on 30.11.2025 and for ₹ 40 lakhs on 9-1-2026.

Compute the income chargeable under the head 'Capital Gains' of Mrs. Yuvika for A.Y.2026-27. The choice of exemption must be in the manner most beneficial to the assessee.

Cost Inflation Index: F.Y. 2005-06 – 117; F.Y. 2007-08 – 129; F.Y. 2025-26 - 376.

### Solution

Computation of income chargeable under the head “Capital Gains” of Mrs. Yuvika for A.Y.2026-27

| Particulars                                                                                                                                                                                                                                                                                                                                                         | ₹ | ₹ |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---|---|
| Capital Gains on sale of residential building                                                                                                                                                                                                                                                                                                                       |   |   |
| Actual sale consideration ₹ 810 lakhs                                                                                                                                                                                                                                                                                                                               |   |   |
| Value adopted by Stamp Valuation Authority ₹ 890 lakhs                                                                                                                                                                                                                                                                                                              |   |   |
| [Where the actual sale consideration is less than the value adopted by the Stamp Valuation Authority for the purpose of charging stamp duty, and such stamp duty value exceeds 110% of the actual sale consideration, then, the value adopted by the Stamp Valuation Authority shall be taken to be the full value of consideration as per section 50C.             |   |   |
| However, where the date of agreement is different from the date of registration, stamp duty value on the date of agreement can be considered provided the whole or part of the consideration is received by way of account payee cheque/bank draft or by way of ECS through bank account or through prescribed electronic modes on or before the date of agreement. |   |   |
| In this case, since advance of ₹ 80 lakh is received by RTGS, i.e., one of the prescribed modes, stamp duty value on the date of agreement can be adopted as the full value of consideration. However, in the present case since stamp duty value on the date of agreement does not exceed 110% of the actual consideration, actual sale                            |   |   |



|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |     |        |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----|--------|
| consideration would be taken as the full value of consideration]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |     |        |
| Gross Sale consideration (Actual consideration, since stamp duty value on the date of agreement does not exceed 110% of the actual consideration)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |     | 810.00 |
| Less: Brokerage @1% of sale consideration (1% of ₹ 810 lakhs)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |     | 8.10   |
| Net Sale consideration                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |     | 801.90 |
| Less: Indexed cost of acquisition                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |     |        |
| Cost of vacant land, ₹ 80 lakhs, plus registration and other expenses i.e., ₹ 8 lakhs, being 10% of cost of land                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  | 88  |        |
| Construction cost of residential building                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 100 | 188.00 |
| Long-term capital gains                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |     | 613.90 |
| Less: Exemption under section 54                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |     | 130.00 |
| Where long-term capital gains exceed ₹ 2 crore, the capital gain arising on transfer of a long-term residential property shall not be chargeable to tax to the extent such capital gain is invested in the purchase of one residential house property in India, one year before or two years after the date of transfer of original asset. Therefore, in the present case, the exemption would be available only in respect of the one residential house acquired in India and not in respect of the residential house in UK. It would be more beneficial for her to claim the cost of acquisition of residential house at Delhi, i.e., ₹ 130 lakhs as exemption. |     |        |
| Less: Exemption under section 54EC                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                |     | 50.00  |
| Amount invested in capital gains bonds of NHAI within six months after the date of transfer (i.e., on or before 13.1.2026), of long-term capital asset, being land or building or both, would qualify for exemption, to the maximum extent of ₹ 50 lakhs, whether such investment is made in the current financial year or subsequent financial year. Therefore, in the present case, exemption can be availed only to the extent of ₹ 50 lakh out of ₹ 90 lakhs, even if the both the investments are made on or before 13.1.2026 (i.e., within six months after the date of transfer).                                                                          |     |        |
| Long term capital gains chargeable to tax                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |     | 433.90 |



**Notes:**

1. Advance of ₹ 20 lakhs received from Mr. Johar, would have been chargeable to tax under the head “Income from other sources”, in the A.Y. 2016-17, as per section 56(2)(ix), since the same was forfeited on or after 01.4.2014 as a result of failure of negotiation. Hence, the same should not be deducted while computing indexed cost of acquisition.
2. It may be noted that since Yuvika has transferred residential building which was acquired before 23.7.2024, she can opt to pay tax @20% on LTCG (computed with indexation) or 12.5% on LTCG (computed without indexation) whichever is beneficial to her while computing her tax liability.

**TYQ Question 07**

Mr. Shiva purchased a house property on February 15, 1979 for ₹ 3,24,000. In addition, he has also paid stamp duty @10% on the stamp duty value of ₹ 3,50,000.

In April, 2008, Mr. Shiva entered into an agreement with Mr. Mohan for sale of such property for ₹ 14,35,000 and received an amount of ₹ 1,11,000 as advance. However, the sale consideration did not materialize and Mr. Shiva forfeited the advance. In May 2015, he again entered into an agreement for sale of said house for ₹ 20,25,000 to Ms. Deepshikha and received ₹ 1,51,000 as advance. However, as Ms. Deepshikha did not pay the balance amount, Mr. Shiva forfeited the advance. In August, 2015, Mr. Shiva constructed the first floor by incurring a cost of ₹ 3,90,000.

On November 15, 2025, Mr. Shiva entered into an agreement with Mr. Manish for sale of such house for ₹ 30,50,000 and received an amount of ₹ 1,50,000 as advance through an account payee cheque. Mr. Manish paid the balance entire sum and Mr. Shiva transferred the house to Mr. Manish on February 20, 2026. Mr. Shiva has paid the brokerage @1% of sale consideration to the broker.

On April 1, 2001, fair market value of the house property was ₹ 11,85,000 and Stamp duty value was ₹ 10,70,000. Further, the Valuation as per Stamp duty Authority of such house on 15th November, 2025 was ₹ 39,00,000 and on 20th February, 2026 was ₹ 41,00,000.

Compute the capital gains in the hands of Mr. Shiva for A.Y.2026-27. Also, compute the tax liability under section 112, assuming that the basic exemption limit has been fully exhausted against other income.

CII for F.Y. 2001-02: 100; F.Y. 2008-09: 137; F.Y. 2015-16: 254; F.Y. 2025-26: 376

**Solution****Computation of Capital gains in the hands of Mr. Shiva for A.Y. 2026-27**

| Particulars                                                                                                                                                                    | ₹         | ₹ |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------|---|
| Actual sale consideration                                                                                                                                                      | 30,50,000 |   |
| Valuation as per Stamp duty Authority on the date of agreement<br>(Where the actual sale consideration is less than the value adopted by the Stamp Valuation Authority for the | 39,00,00  |   |



|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                             |          |           |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|
| purpose of charging stamp duty, and such stamp duty value exceeds 110% of the actual sale consideration then, the value adopted by the Stamp Valuation Authority shall be taken to be the full value of consideration as per section 50C.<br>However, where the date of agreement is different from the date of registration, stamp duty value on the date of agreement can be considered, provided the whole or part of the consideration is received by way of account payee cheque/bank draft or by way of ECS through bank account or such other electronic mode as may be prescribed on or before the date of agreement.<br>In the present case, since part of the payment is made by account payee cheque on the date of agreement, the stamp duty value on the date of agreement would be considered as full value of consideration) |          |           |
| Deemed Full value of consideration<br>[Since stamp duty value on the date of agreement exceeds 110% of the actual consideration, stamp duty value would be deemed as Full Value of Consideration]                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |          | 39,00,000 |
| Less: Expenses on transfer (Brokerage @1% of ₹ 30,50,000)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                   |          | 30,500    |
| Net sale consideration                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |          | 38,69,500 |
| Less: Cost of acquisition (Note 1)                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          | 9,59,000 |           |
| Less: Cost of improvement Less: Cost of improvement                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         | 3,90,000 | 13,49,000 |
| Long term capital gain                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |          | 25,20,500 |

#### Computation of tax liability u/s 112

| Particulars                                                                                                                            | ₹          |
|----------------------------------------------------------------------------------------------------------------------------------------|------------|
| On LTCG of ₹ 25,20,500 x 12.5%                                                                                                         | 3,15,063   |
| Add: Health and Education cess @4%                                                                                                     | 12,603     |
|                                                                                                                                        | 3,27,666   |
| On LTCG with indexation benefit                                                                                                        |            |
| Net Sale consideration                                                                                                                 | 38,69,500  |
| Less: Indexed cost of acquisition (₹ 9,59,000 x 376/100)                                                                               | 36,05,840  |
| Less: Indexed cost of Improvement [₹ 3,90,000 x 376/254]                                                                               | 5,77,323   |
| Long-term capital loss                                                                                                                 | (3,13,663) |
| Since the computation results in a long term capital loss, if indexation benefit is given, the tax u/s 112 would be Nil. However, this |            |



|                                                                                                              |  |
|--------------------------------------------------------------------------------------------------------------|--|
| computation is only for determining tax liability, the said loss can neither be set-off nor carried forward. |  |
|--------------------------------------------------------------------------------------------------------------|--|

**Notes:****a) Computation of cost of acquisition**

| Particulars                                                                                               | ₹         | ₹         |
|-----------------------------------------------------------------------------------------------------------|-----------|-----------|
| Cost of acquisition                                                                                       |           | 10,70,000 |
| Being the higher of                                                                                       |           |           |
| (i) lower of Fair market value i.e., ₹ 11,85,000 and Stamp duty value i.e., ₹ 10,70,000, on April 1, 2001 | 10,70,000 |           |
| (ii) Actual cost of acquisition (₹ 3,24,000 + ₹ 35,000, being stamp duty @10% of ₹ 3,50,000)              | 3,59,000  |           |
| Less: Advance money taken from Mr. Mohan and forfeited                                                    |           | 1,11,000  |
| Cost of acquisition                                                                                       |           | 9,59,000  |

- b) Where advance money has been received by the assessee, and retained by him, as a result of failure of the negotiations, section 51 will apply. The advance retained by the assessee will go to reduce the cost of acquisition. Accordingly, cost of acquisition after reducing the advance money forfeited would be ₹ 9,59,000 [i.e. ₹ 10,70,000 – ₹ 1,11,000 (being the advance money forfeited during the P.Y. 2008-09)]. However, where the advance money is forfeited during the previous year 2014-15 or thereafter, the amount forfeited would be taxable under the head “Income from Other Sources” and such amount will not be deducted from the cost of acquisition of such asset while calculating capital gains. Hence, ₹ 1,51,000, being the advance received from Ms. Deepshikha and retained by him, would have been taxable under the head “Income from other sources” in the hands of Mr. Shiva in A.Y.2016-17.

**TYQ Question o8**

Determine the capital gains/loss on transfer of listed equity shares (STT paid both at the time of acquisition and transfer of shares) and units of equity oriented mutual fund (STT paid at the time of transfer of units) for the A.Y.2026-27 and tax, if any, payable thereon, in the following cases, assuming that these are the only transactions covered under section 112A during the P.Y.2025-26 in respect of these assesseees:

1. Mr. Shagun purchased 300 shares in A Ltd. on 20.5.2017 at a cost of ₹ 400 per share. He sold all the shares of A Ltd. on 31.5.2025 for ₹ 1200. The price at which these shares were traded in National Stock Exchange on 31.1.2018 is as follows –

| Particulars           | Amount in ₹ |
|-----------------------|-------------|
| Highest Trading Price | 700         |
| Average Trading Price | 680         |
| Lowest Trading Price  | 660         |



2. Mr. Raj purchased 200 units of equity-oriented fund, Fund A on 1.2.2017 at a cost of ₹ 550 per unit. The units were not listed at the time of purchase. Subsequently, units of Fund A were listed on 1.1.2018 on the National Stock Exchange. Mr. Raj sold all the units on 3.4.2025 for ₹ 900 each. The details relating to quoted price on National Stock Exchange and net asset value of the units are given hereunder:

| Particulars                  | Fund A             |
|------------------------------|--------------------|
|                              | Amount in ₹        |
| Highest Trading Price        | 750 (on 31.1.2018) |
| Average Trading Price        | 700 (on 31.1.2018) |
| Lowest Trading Price         | 650 (on 31.1.2018) |
| Net Asset Value on 31.1.2018 | 800                |

### Solution

For the purpose of computation of long-term capital gains chargeable to tax under section 112A, the cost of acquisition in relation to the long-term capital asset, being an equity share in a company or a unit of an equity oriented fund or a unit of a business trust acquired before 1st February, 2018 shall be the higher of

- cost of acquisition of such asset, i.e., actual cost; and
- lower of
  - the fair market value of such asset as on 31.1.2018; and
  - the full value of consideration received or accruing as a result of the transfer of the capital asset.

- The fair market value of listed equity shares as on 31.1.2018 is the highest price quoted on the recognized stock exchange as on that date. Accordingly, long-term capital gain on transfer of STT paid listed equity shares by Mr. Shagun would be determined as follows:

The FMV of shares of A Ltd. would be ₹ 700, being the highest price quoted on National Stock Exchange on 31.1.2018. The cost of acquisition of each equity share in A Ltd. would be ₹ 700, being higher of actual cost i.e., ₹ 400 and ₹ 700 [being the lower of FMV of ₹ 700 as on 31.1.2018 (i.e., the highest trading price) and actual sale consideration of ₹ 1,200]. Thus, the long-term capital gain would be ₹ 1,50,000 i.e., (₹ 1,200 – ₹ 700) x 300 shares. The long-term capital gain of ₹ 25,000 (i.e., the amount in excess of ₹ 1,25,000) would be subject to tax@12.5% under section 112A (plus cess@4%), without benefit of indexation. The tax on capital gain @13% would be ₹ 3,250 (₹ 25,000 x 13%)

- In the case of units listed on recognised stock exchange on the date of transfer, the FMV as on 31.1.2018 would be the highest trading price on recognised stock exchange as on 31.1.2018 (if units are listed on that date), else, it would be the net asset value as on 31.1.2018 (where units are unlisted on that date).

Accordingly, the FMV of units of Fund A as on 31.1.2018 would be ₹ 750 (being the highest trading price on 31.1.2018, since the units of Fund A are listed on that date).



3D.25

The cost of acquisition of a unit of Fund A would be ₹ 750, being higher of actual cost i.e., ₹ 550 and ₹ 750 (being the lower of FMV of ₹ 750 as on 31.1.2018 and actual sale consideration of ₹ 900). Thus, the long-term capital gains on sale of units of Fund A would be ₹ 30,000 ( $₹ 900 - ₹ 750$ ) x 200 units.

Since the long-term capital gains on sale of units of Fund A is ₹ 30,000, which is less than ₹ 1,25,000, the said sum is not chargeable to tax under section 112A.

Tom.

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